



SUPERIOR COURT OF SAN MATEO COUNTY

Probate - Probate

Courtroom 2C

Hearing Date: 09/10/2026 - 09:00 AM

09/01/2026

3:34 PM

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Judge: Novak, Lisa A.

Clerk: Ortega, Alexandrina

Reporter: Conde, Wendy

finances if an accountant were hired to complete the accounting. As such, the fee award will be reduced, finding that \$200 per hour is a reasonable rate for Ms. Hutchinson's work on the accounting. [\$21,600 rather than \$30,429.00]. Once proper notice is provided to the ward, the court will then be prepared to approve the accounting and award fees as requested to the guardian, and the reduced fees to counsel consistent with this ruling. As such, petitioner shall submit a revised proposed order which reduces attorney fees by \$8,829.00

24-PRO-01251	IN RE THE ZAPLETAL FAMILY TRUST	
Line 5	Petitioner: Zapletal, Alexa (MANZOOR, SUMBLE NGUYEN, AILEEN R.) Respondent: Canas, Hernan (NOYES, GUY E. Pro Se) Respondent: Canas, Mary Ellen (Pro Se) Decedent: ZAPLETAL, DAWN Decedent: ZAPLETAL, RAYMOND Respondent: Shustoff, Mark A. (BIORN, KRISTOFER W.) Claimant: Phillips & Cohen Associates, Ltd.	Status Hearing

Tentative Ruling:

APPEARANCE OPTIONAL

The Petition for Instruction set on October 20th will be re-set on October 30, 2026 when the First Amended Petition for Relief is set. The court accepts the stipulation of Petitioner and Respondent Trustee that Trustee's response to the initial petition, filed 4/4/2025, will act as his response to the First Amended Petition. The Court issues an Order to Show Cause as to why Mary Ellen Canas and Hernan Canas should not now be held in contempt for failing to abide by this court's previous order to pay monetary sanctions. That shall also be set on October 30, 2026 at 9:00 a.m.



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25-PRO-00719	IN RE THE MATTER OF THE DELLA SANTINA FAMILY REVOCABLE DECLARATION OF TRUST UDT 08/07/2000	Petition to Approve Accounting Verified Petition for Order Authorizing Sale of Trust Real Property, etc.
Line 6, 7, 8	Petitioner: Santina, Lisa Della (HARRIS, MATTHEW W, ESQ) Objector: DELLA SANTINA, JOE (LOEW, JEFFREY R. WIGGS, GEOFFREY E.) Respondent: Abraham, A. K.	Petition Hearing Order to Show Cause Hearing Petition Hearing

Tentative Ruling:

APPEARANCE OPTIONAL (Zoom allowed)

Respondent Joeseph Della Santina filed on 9/08/2026 an objection to Petitioner's initial VERIFIED PETITION FOR ORDER CONFIRMING TRUST ASSET, COMPELLING RECONVEYANCE TO TRUST, FOR CONSTRUCTIVE TRUST, PROBATE CODE 859 DAMAGES, FRAUD, ATTORNEYS FEES AND COSTS, which was filed 5/30/2025. On 9/04/26 he filed a response to petitioner's VERIFIED PETITION FOR ORDER AUTHORIZING SALE OF TRUST REAL PROPERTY (3055 ARBOLADO DRIVE, WALNUT CREEK, CALIFORNIA);

The OSC issued to Joseph Della Santina is discharged.

The Court GRANTS Successor temporary trustee Lisa Della Santina's petition for sale of trust real property. The Trustee shall retain a licensed real estate broker and list the Property for sale on the open market. The Trustee shall sell the Property in its present "as-is" condition, without repairs or warranties; shall accept the highest and best offer consistent with the Property's fair market value; and shall execute all documents necessary to complete the sale. The net sale proceeds will be deposited into the Trust's account and will remain subject to the Court's continuing supervision. Joseph's reserved claims for reimbursement, offsets, and accounting adjustments will be resolved in connection with the pending accounting, without prejudice to Petitioner's claims against Joseph for fraud and double damages under Probate Code section §859

Parties are to meet and confer concerning potential dates for trial, and return to court December 2, 2026 at 9:00 a.m. to set the remaining contested issues for trial. The trial will address both Lisa Della Santina's initial petition and Joseph Della Santina's petition to approve accounting.